Insertion of new section 170A.

55. After section 170 of the Income-tax Act, the following section shall be inserted, namely:—

'170A *Effect of order of tribunal of court in respect of business reorganisation.*—Notwithstanding anything to the contrary contained in section 139, in a case of business reorganisation, where prior to the date of order of a High Court or tribunal or an Adjudicating Authority as defined in clause (1) of section 5 of the Insolvency and Bankruptcy Code, 2016 (31 of 2016), as the case may be, any return of income has been furnished by the successor under the provisions of section 139 for any assessment year relevant to the previous year to which such order applies, such successor shall furnish, within a period of six months from the end of the month in which the said order was issued, a modified return in such form and manner, as may be prescribed, in accordance with and limited to the said order.

Explanation.—In this section, the expressions—

(*i*) "business reorganisation" means the reorganisation of business involving the amalgamation or de-merger or merger of business of one or more persons;

(*ii*) "successor" means all resulting companies in a business reorganisation, whether or not the company was in existence prior to such business reorganisation.'.